

Ross on Crime

I

Identification

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Identification

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[9.100] Three forms of identification

In *Festa v The Queen* (2001) 208 CLR 593; 185 ALR 394 McHugh J referred to three forms of identification:

- positive identification as direct evidence;
- positive identification as circumstantial evidence;
- “circumstantial identification evidence”.

Describing the first two forms, his Honour said (at 610; 406–407 [54]):

Most cases concerned with identification evidence are cases of positive identification. That is to say, cases where a witness claims to recognise the accused as the person seen on an occasion that is relevant to the charge. Positive-identification evidence may be used as direct or circumstantial proof of the charge. A positive identification of the accused is direct evidence of the crime when it identifies the accused as the person who committed one or more of the acts that constitute the crime in question. A positive identification is circumstantial evidence when its acceptance provides the ground for an inference, alone or with other evidence, that the accused committed the crime in question. A witness gives direct evidence of the charge when she testifies that the accused ordered her to hand over the takings. A witness gives circumstantial evidence of the charge when she testifies that the

accused was the person who ran out of the bank immediately after other evidence proves it was robbed.

His Honour described the third form (at 610–611; 407 [56]):

Unfortunately, another class of evidence is sometimes called “circumstantial identification evidence”. It is evidence that asserts that the general appearance or some characteristic or propensity of the accused is similar to that of the person who committed the crime. It may be evidence of age, race, stature, colour or voice or of a distinctive mark or gait. It differs from positive-identification evidence in that the witness does not claim to recognise the accused as the person who committed the crime or was present in circumstances from which it can be inferred that the accused committed the crime. Although such evidence does not directly implicate the accused in the crime or as being present in incriminating circumstances, it is admissible evidence. It is proof of a circumstance – usually, but not always, weak – that with other evidence may point to the accused as the person who committed the crime. (citations omitted)

[9.105] The nature of identification

In *Bulejck v The Queen* (1996) 185 CLR 375; 86 A Crim R 467; 135 ALR 517 (HC), McHugh and Gummow JJ said (at 406; 539–540; 491):

Identification evidence is often unreliable evidence because human perception and recollection are prone to error. But neither the distinctiveness of the accused's voice nor the familiarity of a witness with that voice ensures that the identification of that voice with a criminal occurrence is reliable. Distinctiveness and familiarity are merely factors that may increase the probability that a particular identification is correct. Identification by a witness with a good memory for sounds may be just as reliable as identification by a witness who is familiar with the accused's voice or who claims to remember that the voice at the scene of the crime had the same distinctive features as the accused's voice. The capacities of individuals to remember sights and sounds vary enormously. Some persons may remember sounds that others do not, just as some persons may recollect physical features when others who were present cannot recollect them. Moreover, individuals who witness or are involved in criminal incidents react differently. Some remain relatively calm; others are shocked or confused.

[9.110] “Looks like”

In *Pitkin v The Queen* (1995) 69 ALJR 612; 130 ALR 35; 80 A Crim R 302 (HC), a witness said of a photograph of the accused “this looks like the person”. The evidence on its own was held not sufficient identification. The appeal was allowed.

[9.115] Accused picked out as “similar”

Such evidence is admissible as circumstantial but not as identification: *Murphy v The Queen* (1994) 62 SASR 121 (CCA). That evidence when standing alone is not sufficient to sustain a conviction: *Pitkin v The Queen* (1995) 69 ALJR 612; 130 ALR 35; 80 A Crim R 302 (HC).

[9.120] Identification of an object

The dangers of identification of a person apply to the identification of an item. A judge must warn the jury of those dangers:

In *R v Lowe* (1997) 98 A Crim R 300 (NSW CCA) Hunt CJ at CL said (at 317):

I see no distinction in principle between visual, voice and object identification. I am satisfied that a warning as to the danger of convicting should be given where the identification relates to an inanimate object, such as the clothing worn by the offender or a weapon used by him in the commission of the crime, and where that evidence represents a significant part of the proof of the guilt of the accused. Just as with voice identification, object identification is not a distinct category of evidence.

This principle was approved in *North v Director of Public Prosecutions (Cth)* [2020] VSCA 1.

Other cases

R v Whalen (2003) 56 NSWLR 454 at 467 [45]–[48] (CCA) (vehicle);

R v Clout (1995) 41 NSWLR 312 (CCA) at 320–321 (identification of a semi trailer);

Bond v MacFarlane (1990) 102 FLR 38 at 46 (ACT, Higgins J) (cars);

R v Callaghan (2001) 4 VR 79; 124 A Crim R 126 at 95–96; 143–144 [28] (CA) (handguns);

R v Theos (1996) 89 A Crim R 486 at 491–496 (Vic CA) (shotgun);

R v Bridger (1930) 22 Cr App R 21 (identification of a cash box).

[9.125] Particulars of description to be given if requested or if discrepancy

In *R v Turnbull* [1977] 1 QB 224; [1976] 3 All ER 549; (1976) 63 Cr App R 132, the five judge court held (at 228; 552; 137):

If in any case, whether it was being dealt with summarily or on indictment, in which the prosecution has reason to believe that there is such material discrepancy they should supply the accused or his legal advisers with particulars of the description the police were first given. In all cases if the accused asked to be given particulars of such descriptions, the prosecution should supply them.

Applied:

R v Burchielli [1981] VR 611; 2 A Crim R 352 at 618, 359 (CCA);

Dawson v The Queen (1990) 2 WAR 458; 47 A Crim R 458 (CCA).

[9.130] Recognition

On occasions the recognition of someone known to the witness has more evidential force than the identification of a stranger. There are not many recognition cases.

In *R v Turnbull* [1977] 1 QB 224; [1976] 3 All ER 549; (1976) 63 Cr App R 132 the five judge court said (at 228; 552; 137):

Recognition may be more reliable than identification of a stranger; but even when the witness is purporting to recognise someone whom he knows, the jury should be reminded that mistakes in recognition of close relatives and friends are sometimes made.

In *Beckford v The Queen* (1993) 97 Cr App R 409 (PC) Lord Lowry, giving the advice of the Board, dealt with a judges summing-up and said (at 415):

The need to give the general warning even in recognition cases where the main challenge is to the truthfulness of the witness should be obvious. The first question for the jury is whether the witness is honest. If the answer to that question is yes, the next question is the same as that which must be asked concerning every honest witness who purports to make an identification, namely, is he right or could he be mistaken?

In *Shand v The Queen* [1996] 2 Cr App R 204 (PC) Lord Slynn of Hadley giving the advice of the Board said (at 209):

The importance in identification cases of giving the *Turnbull* warning has been frequently stated and it clearly now applies to recognition as well as to pure identification cases. It is, however, accepted that no precise form of words need be used as long as the essential elements of the warning are pointed out to the jury. The cases in which the warning can be

entirely dispensed with must be wholly exceptional, even where credibility is the sole line of defence.

In *Langford v The State* [2005] UKPC 20 the Board advised (at [27]):

Judges could usefully refer to the reminder given by Lord Lane CJ in *R v Bentley* [1991] Crim LR 620, that many people have experienced thinking that they had seen someone in the street whom they knew, only to discover that they were wrong. The expression “I could have sworn it was you” is an apposite remark to describe such an honest mistake.

Other cases

Carr v The Queen (2000) 117 A Crim R 272 at 288–289 [59]–[61] (Tas CCA);

Smith v The Queen (2001) 206 CLR 650; 125 A Crim R 10; [2001] HCA 50 per Kirby J at 668 [56]–[57];

R v Spero (2006) 13 VR 225; 161 A Crim R 13 (CA) per Redlich AJA (at 233–235; 22–23 [26]–[30]) with whom the other judges agreed;

Capron v The Queen (The Bahamas) [2006] UKPC 34;

R v Forbes [2001] 1 AC 473; [2001] 1 All ER 686; [2002] Cr App R 430 (HL).

[9.135] Forms of identification

Identification may be visual, by fingerprint, by voice, by photograph (of a person in bank photo by another not at the scene) and so on.

[9.140] Warning to jury

Legislation

Some legislation requires a judge to warn a jury on the dangers involved in evidence that identifies an accused.

Uniform Evidence Acts s 116:

The section is as follows:

116(1) If identification evidence has been admitted, the judge is to inform the jury:

- (a) that there is a special need for caution before accepting identification evidence; and
 - (b) of the reasons for that need for caution, both generally and in the circumstances of the case.
- (2) It is not necessary that a particular form of words be used in so informing the jury.

See also

Dhanhoa v The Queen (2003) 217 CLR 1; 139 A Crim R 41; [2003] HCA 40 at [19], [22], [53], [92]–[94].

The cases

In *Domican v The Queen* (1992) 173 CLR 555; 60 A Crim R 169 the majority held (at 561–562; 172–173):

Whatever the defence and however the case is conducted, where evidence as to identification represents any significant part of the proof of guilt of an offence, the judge must warn the jury as to the dangers of convicting on such evidence where its reliability is disputed. The terms of the warning need not follow any particular formula. But it must be cogent and effective. It must be appropriate to the circumstances of the case. Consequently, the jury must be instructed “as to the factors which may affect the consideration of [the identification] evidence in the circumstances of the particular case”. A warning in general terms is insufficient. The attention of the jury “should be drawn to any weaknesses in the identification evidence”. Reference to counsel's arguments is insufficient. The jury must have the benefit of a direction which has the authority of the judge's office behind it. It follows that the trial judge should isolate and identify for the benefit of the jury any matter of significance which may reasonably be regarded as undermining the reliability of the identification evidence. (authorities cited for each proposition).

In *R v Southon* (2003) 85 SASR 436; 139 A Crim R 250 (CCA) Sulan J with whom the others agreed said (at 445; 258–259 [43]–[45]):

Where there is evidence which identifies the accused as the person who committed the crime, or from which the jury is asked to conclude that it was the accused who committed the crime and the reliability of that evidence is disputed, a trial judge is required to warn the jury of the dangers associated with such evidence. The extent of the warning will vary according to the circumstances of the case. The warning will remind the jury of mistakes that can occur when witnesses are asked to identify a person who committed the crime. Such factors as the lighting at the time, whether the witness knew or had seen the accused before, the length of time that the witness had to observe the accused, whether the witness was panicking at the

time, and other matters which may have distracted the witness are just some of the factors to which the judge might refer. The circumstances of the identification are also relevant. For example, if the identification was made at a line-up and it was some months after the event, the judge should caution the jury about the possibility of error. If the identification was by way of photographic array, then the judge should direct the jury about the deficiencies of such a method of identification.

There is also evidence which identifies the accused but forms part of the circumstantial evidence upon which the case depends. On occasions, a witness will pick out an accused in a line-up, or by some other method, and identify the accused as a person who looks similar to the person who committed the crime. In effect, the witness is saying that the person who is picked out is of a similar height and build, has similar facial characteristics and has similar coloured and length hair and other identifying features as the person who committed the crime. This evidence is circumstantial evidence. It is evidence to which the jury is entitled to have regard when considering whether the prosecution has proved that the accused was the person who committed the crime. In those circumstances it may be necessary for a trial judge to give a warning comparable to that which may be given when there is direct evidence of identification.

In other cases of circumstantial evidence, such a warning may not be necessary.

In *R v Turnbull* [1977] 1 QB 224; [1976] 3 All ER 549; (1976) 63 Cr App R 132 the five judge court held (at 228; 552; 137):

First, whenever the case against an accused depends wholly or substantially on the correctness of one or more identifications of the accused which the defence alleges to be mistaken, the judge should warn the jury of the special need for caution before convicting the accused in reliance on the correctness of the identification or identifications. In addition he should instruct them as to the reason for the need for such a warning and should make some reference to the possibility that a mistaken witness can be a convincing one and that a number of such witnesses can all be mistaken. Provided this is done in clear terms the judge need not use any particular form of words.

Secondly, the judge should direct the jury to examine closely the circumstances in which the identification by each witness came to be made. How long did the witness have the accused under observation? At what distance? In what light? Was the observation impeded in any way, as for example, by passing traffic or a press of people? Had the witness ever seen the accused before? How often? If only occasionally, had he any special reason for remembering the accused? How long elapsed between the original observation and the subsequent identification to the police? Was there any material discrepancy between the

description of the accused given to the police by the witness when first seen by them and his actual appearance?

Approved:

Powers v The Queen (2000) 113 A Crim R 51 at 60 [40] (NT CCA); *Traill v The Queen* [2019] SASCFC 122.

R v Burchielli [1981] VR 611; 2 A Crim R 352 at 617–618, 358–359 (CCA).

In *Burchielli*, Young CJ and McInerney J said (at 620–621; 362) that a judge's summing up should include:

1. That the experience of lawyers (which jurors have probably not shared) have taught them that mistakes in identification do not infrequently occur.
2. That honest and convincing witnesses may be mistaken, particularly where their opportunities for observing the suspect are limited.
3. That the presentation of a single suspect (as in the case of Mrs Campbell) so greatly increases the liability to mistake as to make it extremely dangerous for a jury to assign any probative value to Mrs Campbell's evidence of identification.
4. That identification from police photographs is undesirable ...
5. That two defective identifications do not necessarily support one another.

Other cases

R v Dickson [1983] 1 VR 227 (CCA). Note that the decision in *Dickson* was cited with approval in *Reid v The Queen* [1990] 1 AC 363; [1989] 3 WLR 771; (1989) 90 Cr App R 121 (at 380; 778; 126) (PC); *Wood v The Queen* [2012] NSWCCA 21 at [413]–[414]; *R v Janissen* [2013] QCA 279; *ISN v Western Australia (No 2)* [2021] WASCA 112.

An identification warning is not appropriate when the accused tenders evidence that the victim in a murder prosecution was seen alive after the time in which it is alleged that the victim was killed: *R v Williams* [2021] QCA 120.

[9.145] Magistrate

In a summary hearing, a magistrate must heed the warnings as would a jury by directing himself as would a judge: *Grbic v Pitkethly* (1992) 38 FCR 95; 65 A Crim R 12; 110 ALR 577 (FCA); *Sharrett v Gill* (1993) 113 FLR 316; 65 A Crim R 44 (ACT, Miles CJ); *Parkinson v Espinoza* (1996) 85 A Crim R 336 (WA, Anderson J).

[9.150] Power to exclude

A judge has the power to exclude evidence of identification which is unfairly prejudicial or tainted: *Alexander v The Queen* (1981) 145 CLR 395; 34 ALR 289. Gibbs CJ said (at 402–403; 294):

However, a trial judge has a discretion to exclude any evidence if the strict rules of admissibility operate unfairly against the accused. It would be right to exercise that discretion in any case in which the judge was of opinion that the evidence had little weight but was likely to be gravely prejudicial to the accused.

Voir dire to determine the admissibility of identification is not often necessary: *R v Rowley* (1986) 23 A Crim R 371 (VIC CCA) at 374–375, 378–380.

See also

Voir dire at [22.1700].

[9.155] Expert evidence

Expert evidence on the general unreliability of identifications is inadmissible in jurisdictions other than where the *Uniform Evidence Acts* apply.

General cases:

R v Clune [1995] 1 VR 489; 5 A Crim R 246 at 531 (VR) (CCA);

Smith v The Queen (1990) 64 ALJR 588 (HC);

R v Smith [1987] VR 907 (Vincent J).

Cases under *Uniform Evidence Acts*:

R v Rose (2002) 55 NSWLR 701 (CCA);

R v Smith (2000) 116 A Crim R 1 at 9 [46]–[47] (NSW CCA).

[9.160] Voice

On one view, the reliability of the impugned identification evidence goes to weight rather than admissibility: *R v Miladinovic* (1993) 47 FCR 190; 71 A Crim R 478 at 246, 484 (FCA).

In *R v Ong* (2007) 176 A Crim R 366 (Vic CA) Buchanan JA, with whom the other judges agreed, said (at 370 [20]):

The reliability of evidence identifying a voice depends upon the familiarity of the witness with the voice, the length and volume of the speech said to be that of the person identified and the time that has elapsed between the occasions on which the witness heard the voice to be identified and the voice of the person said to be the speaker.

In *R v Callaghan* (2001) 4 VR 79; 124 A Crim R 126 (CA) Winneke P said (at 94; 142 [27]):

This review of the authorities on the question of the admissibility of voice identification evidence leads me to conclude that courts in this State should continue to follow the principles which have been established by previous decisions of the Court of Criminal Appeal; namely that there is no rule of law which obliges the trial judge to exclude such evidence in the absence of evidence of prior familiarity or distinctiveness, although he may, in the exercise of his discretion, exclude it on grounds of prejudice or unfairness.

In *R v Bueti* (1997) 70 SASR 370 (CCA) Doyle CJ said (at 379):

[T]here is no reason in principle, in my opinion, why the admissibility of evidence of identification by voice recognition should be treated as subject to rules peculiar to that type of evidence. The admissibility of such evidence should depend upon the principles that generally regulate the admissibility of evidence. That is not to deny, of course, that those principles must be applied with reference to the particular nature of the evidence under consideration.

See also, *Braslin v Tasmania* [2011] TASCCA 14; *Nguyen v The Queen* [2017] NSWCCA 4; *Davey v Tasmania* [2020] TASCCA 12.

Other cases

Korgbara v The Queen (2007) 170 A Crim R 568; 210 FLR 36 (NSW CCA);

R v Solomon (2005) 92 SASR 331; 192 FLR 421 (CCA);

Neville v The Queen (2004) 145 A Crim R 108 (WA CCA);

R v Camilleri (2001) 127 A Crim R 290 (NSW CCA);

R v Chenia [2003] 2 Cr App R 6 (CA);

R v O'Doherty [2003] 1 Cr App R 5 (NI CA);

R v Brotherton (1992) 29 NSWLR 95; 65 A Crim R 301 at 105–106, 311–312 (CCA);

The variance in New South Wales of *R v E J Smith* [1984] 1 NSWLR 462 at 477 (CCA) and *R v Brownlowe* (1986) 7 NSWLR 461 at 466 (CAA), was not settled in *Bulejck v The Queen* (1996) 185 CLR 375; 86 A Crim R 467; 135 ALR 517 (HC).

Expert evidence

Li v The Queen (2003) 139 A Crim R 281 (NSW CCA).

See also

S O'Driscoll, “Voice Identification” (1994) NZLJ 138;

D Ormerod, “Sound Familiar? – Voice Identification Evidence” [2001] Crim LR 595–622.

[9.165] Actions by police

In *Alexander v The Queen* (1981) 145 CLR 395; 34 ALR 289 Gibbs CJ said (at 401; 292–293):

[I]t is most undesirable that police officers who have arrested a person on a charge of having committed a crime should arrange for potential witnesses to identify that person except at a properly conducted identification parade. Similarly, speaking generally, an identification parade should, wherever possible, be held when it is desired that a witness should identify a person who is firmly suspected to be the offender.

Identification evidence obtained by a trick may be excluded

R v Shannon (1987) 47 SASR 347; 29 A Crim R 434 (CCA);

R v Szach (1980) 23 SASR 504; 2 A Crim R 321 at 582–583 (SASR) (CCA);

R v Alexander [1994] 2 VR 249 at 257 (CCA).

[9.170] Identification parade

Method

Fairly complete methods of conducting an identification parade are set out in:

Cth: *Crimes Act 1914* s 3ZM;

ACT: *Crimes Act 1900* s 233.

No force

A person cannot be forced to submit to such a parade but has no right not to be identified: *R v Clune* [1982] VR 1; 5 A Crim R 246 (CCA).

Other cases

Dair v Western Australia (2008) 182 A Crim R 385 (WA CCA): identification parade in a prison is not wrong;

R v Haidley & Alford (1984) VR 229; 10 A Crim R 1 (CCA).

[9.175] Direction on identification parade

In *R v Forbes* [2001] 1 AC 473; [2001] 1 All ER 686; [2002] Cr App R 430 (HL) the police did not conduct an identification parade and should have. Lord Bingham, delivering the opinion of the Committee, said (at 488; 698 [27]):

[T]he jury should ordinarily be told that an identification parade enables a suspect to put the reliability of an eye-witness's identification to the test, that the suspect has lost the benefit of that safeguard and that the jury should take account of that fact in its assessment of the whole case, giving it such weight as it thinks fair. In cases where there has been an identification with the consent of the suspect, and the eye witness has identified the suspect, in circumstances involving no breach of the Code, the trial judge will ordinarily tell the jury that they can view the identification at the parade as strengthening the prosecution case but may also wish to alert the jury to the possible risk that the eye witness may have identified not the culprit who committed the crime but the suspect identified by the same witness on the earlier occasion.

In fact there was other strong identification evidence. Notwithstanding the trial judge's scanty directions on lack of identification parade, the appeal was dismissed.

[9.180] Refusal to participate in identification parade

Generally

Refusal to participate can be given in evidence, not to show consciousness of guilt but to explain why there is no evidence of an identification parade where one would be expected:

R v McCarthy (1993) 71 A Crim R 395 at 404 (NSW CCA);

R v Clune [1982] VR 1; 5 A Crim R 246 (CCA) per Crockett J at 11;

R v Davies (2005) 11 VR 314; 153 A Crim R 217 (CA).

Judges direction

In *R v McCarthy* (1993) 71 A Crim R 395 (NSW CCA) Hunt CJ at CL said (at 404):

When such evidence is given, however, the judge should give a direction – as soon as the evidence is given and, if necessary, again in the summing up – to make it clear to the jury that the accused had a fundamental right to decline to participate in an identification parade and that his exercise of that right must not lead to any conclusion by them that he is guilty.

Approved:

R v Davies (2005) 153 A Crim R 217 at 221 [11]–[12] (Vic CA).

[9.185] Single suspect

Presentation of a single suspect may be a tainted identification, and is certainly weak. Such evidence is not inadmissible:

Festa v The Queen (2001) 208 CLR 593; 185 ALR 394; *Kelly v The Queen* (2002) 129 A Crim R 363 (WA CCA);

A judge has a discretion to exclude such evidence: *R v Hallam* (1985) 42 SASR 126; 18 A Crim R 221 (CCA);

An appeal the court will often set aside a conviction based on such evidence: *Davies and Cody v The King* (1937) 57 CLR 170; *R v Corke* (1989) 41 A Crim R 292 (Qld CCA).

By photograph

R v Ormsby [1985] 1 NZLR 311 (CA);

R v Dwyer and Ferguson [1925] 2 KB 799; [1924] All ER Rep 272; 18 Cr App R 145.

However, identification evidence gained by showing the witness a single photograph of the victim was allowed in *R v Scott* (2000) 116 A Crim R 15 (Qld, Byrne J).

In person

Single suspect

R v Dickman (1910) 5 Cr App R 135 at 142–143 (CCA);

R v Burchielli [1981] VR 611; 2 A Crim R 352 (CCA);

R v Hallam (1985) 42 SASR 126; 18 A Crim R 221 (CCA).

Displacement effect

The “displacement effect” was described by Stephen J in *Alexander v The Queen* (1981) 145 CLR 395; 34 ALR 289 at 409 (CLR):

Lastly, there is the “displacement” effect. Having been shown a photograph, the memory of it may be more clearly retained than the memory of the original sighting of the offender and may, accordingly, displace that original memory. Any subsequent face-to-face identification, in court or in an identification parade, may, on the identifying witness's part, in truth involve a matching of the man so identified with the remembered photograph, which has displaced in his memory his recollection of the original sighting.

This displacement effect has been referred to often:

R v Carusi (1997) 92 A Crim R 52 at 55 (NSW CCA);

R v Morris (1996) 88 A Crim R 297 at 305–306 (NSW CCA);

Wood v The Queen (2012) 84 NSWLR 581; [2012] NSWCCA 21 at [413]–[414].

R v Crawford [2015] SASCFC 112.

Warning

If the evidence is admitted, the judge must warn the jury of the displacement effect: *R v Akgul* (2002) 5 VR 537 (CA). If the judge (or magistrate) sits alone, a self-warning must be given: *R v Marshall* (2000) 113 A Crim R 190 at 195 [35] (NSW CCA).

[9.190] Courtroom identification

Alone, a courtroom or dock identification is of little weight and potentially prejudicial as often to require exclusion:

R v Demeter [1995] 2 Qd R 626; (1995) 77 A Crim R 462 (CA);

Grbic v Pitkethly (1992) 38 FCR 95; 65 A Crim R 12; 110 ALR 577 (FCA);

Dawson v The Queen (1990) 2 WAR 458; 47 A Crim R 458 (CCA);

R v Williams [1983] 2 VR 579 (CCA);

R v Dupas [2011] VSC 200;

Wood v The Queen (2012) 84 NSWLR 581; [2012] NSWCCA 21 at [415]–[416];

In *Police v Murray* [2013] SASCF 68, at [34] the Court stated:

There may be cases where an in-dock identification is appropriate, but only where there has been some form of positive identification on a previous occasion and the in-dock identification merely relates that previous identification to the case at hand. That is not the case here. There was no previous positive identification, merely evidence that amounted to a piece of circumstantial evidence. Therefore, the only positive identification led as part of the prosecution case against the appellant was that in-dock identification. The evidence is clearly valueless and, if objected to at the time, should have been excluded.

As noted above, the position is different when there has already been a previous acceptable identification.

In *Murdoch v The Queen* (2007) 167 A Crim R 329 (NT CCA) the court said in a joint judgment (at 340 [68]):

[D]ock identifications are not usually permitted, other than as a confirmatory of an acceptable prior out-of-court identification: *Jamal v The Queen* (2000) 116 A Crim R 45; *R v Gorham* (1997) 68 SASR 505.

In *R v Clark* (1996) 91 A Crim R 46 (SA CCA) Cox J gave the leading judgment. He said (at 51–52):

At the trial the learned judge, over a defence objection, permitted the victims to identify in the dock those appellants whom they had already identified in the photographs. Such a procedure is often followed in this State: indeed, in *Britten* (1988) 51 SASR 567 King CJ said (at 572) that a witness who has identified an accused person out of court should always be asked at the trial whether he or she can identify the accused in court. It gives an honest witness an opportunity of reconsidering the matter and it may also stop the jury from inferring wrongly from the absence of a dock identification that the witness is unable to make one. Of course, these are negative aspects of such evidence. Probably the second identification will add very little, if anything, to the first. (It may, conceivably – the witness may perceive in court some significant feature of the accused that was not observable in the photograph.) There was also, as the learned trial judge observed, some value in a dock identification for the jury, in a case involving multiple accused, in understanding which accused was alleged to have done what. Any risk that the jury's common sense does not guarantee that a dock identification does not generally prejudice the accused will be removed by the usual direction in the summing up.

Sometimes a witness will claim to be more certain.

In *Al-Hashimi v The Queen* (2004) 181 FLR 383; 145 A Crim R 186 (WA CCA) a witness had said at the preliminary hearing that he was only 70% certain of the identity of the accused. At trial he said he was 100% sure in the dock identification. On appeal, held that the evidence was properly admitted.

Other cases

R v Saxon (1998) 1 VR 503; 92 A Crim R 188 at 513, 198–199 (CA);

Jamal v The Queen (2000) 182 ALR 307; 116 A Crim R 45 (FCA);

Al-Hashimi v The Queen (2004) 181 FLR 383; 145 A Crim R 186 (WA CCA);

Williams v The Queen [1997] 1 WLR 548 (PC);

Young v Lusted [2011] TASSC 22.

[9.195] Identification by person not at the scene

Evidence may be given by a person not at the scene. Such a person may be an expert or may make the identification from earlier acquaintance with the accused by way of recognition.

In *Smith v The Queen* (2001) 206 CLR 650; 125 A Crim R 10; [2001] HCA 50 police had identified the accused as one person in bank security photographs of a robbery. The court held that the police were in no better position than the jury to compare the photograph with the accused. The police evidence was irrelevant and therefore inadmissible.

Police (and other) evidence will be relevant and admissible if there are other matters which bear on the identification.

In *Nguyen v The Queen* (2007) 180 A Crim R 267 (NSW CCA) CCTV still photograph evidence was before the jury. Two police officers looked at the evidence and identified the accused. Each officer said that they had known the accused for a long time. The evidence on the footage and photos was unclear but seemed to show persons looking different from those in the dock. The trial judge had admitted the evidence. Held (at [9]–[39]), the police evidence was properly admitted. Unlike *Smith v The Queen* (2001) 206 CLR 650; 125 A Crim R 10; 181 ALR 354; [2001] HCA 50, the jury could not have made its own identification.

See also

Relevance at [18.2400].

[9.200] Folder of photos

Where a witness looks at a folder of photos and picks out one as the offender, in *Alexander v The Queen* (1981) 145 CLR 395; 34 ALR 289 the court held:

- evidence of an identification made out of court by the use of police photographs is admissible;
- where such evidence is admitted, the photographs themselves will also be admissible;
- the trial judge has a discretion to exclude such evidence if it would be unfair to the accused to accept it (see, for example, *R v Carusi* (1997) 92 A Crim R 52 (NSW CCA));
- when a witness gives evidence of an earlier identification, but is unable to remember the person identified, an observer may give evidence of his act of identification.

[9.205] Photofit

This is admissible as part of an identifying witness' evidence:

R v Cook [1987] 1 QB 417; [1987] 1 All ER 1049; 84 Cr App R 369 (CA);

R v Hentschel [1988] VR 362 (CCA).

See also

Photofit at [16.1500].

[9.210] Photoboard

Generally

Police will often make up a board containing photographs, usually 12. The board is shown to the witness. Ideally the police never even intimate that the accused or suspect is one whose photo is among those on the board. The photos must be of similar people and not identified in any way.

Generally speaking, if the accused is a suspect, particularly if in custody, the accused should be offered an identification parade.

The photoboard identification and the identification parade should be recorded particularly on video.

Cases

Where the accused's photo stands out as being the only one with the features earlier described by the witness, evidence of identification from the photoboard is improper.

So in *R v Blick* (2000) 111 A Crim R 326 (NSW CCA) the photo of the accused was the only one with a goatee beard. Appeal allowed.

In *Knight v Brown* (2004) 183 FLR 135 (ACT, Connolly J) the photo of the accused was the only one with bright red hair. Appeal allowed.

See also

R v Shamouil (2006) 66 NSWLR 228 (CCA).

Legislation

Uniform Evidence Acts s 115 refers to picture identification evidence. It sets out conditions in which a picture can be used. The picture must not show that the defendant was in custody. In effect the picture should not be shown unless the appearance of the defendant had changed since the offence; the defendant refused to take part in an identification parade; an identification parade was not reasonable.

In *R v Darwiche* (2006) 166 A Crim R 28 (NSW, Bell J) his Honour examined s 115(5)(a), refusal to take part in an identification parade. His Honour ruled (at 36 [34]):

The verb “refuse” is defined in the Oxford English Dictionary, 2nd ed, as “to decline to take or accept (something offered or presented); to reject the offer (a thing).”

[9.215] Identical twin

Sharrett v Gill (1993) 113 FLR 316; 65 A Crim R 44 (ACT, Miles CJ) was an appeal from a summary case. The defendant gave an alibi; his identical twin was the driver he said. The appeal was allowed.

[9.220] Condition of identifying witness, possibly affecting accuracy

Drunkenness

R v Manh (1983) 33 SASR 563; 9 A Crim R 81 at 575, 90 (CCA).

Schizophrenia

Bromley v The Queen (1986) 161 CLR 315; 22 A Crim R 216; 67 ALR 12.

Fear

“Two unsatisfactory identifications do not support one another”: *R v Burchielli* [1981] VR 611; 2 A Crim R 352 at 616 (CCA).

[9.225] Other types of identification

Bite marks

As to the identification by bite marks, there is no reliable identification by forensic odontology that exists to enable the evidence to be received:

R v Carroll (1985) 19 A Crim R 410 (Qld CCA);

Lewis v The Queen (1987) 88 FLR 104; 29 A Crim R 267 (NT CCA).

Podiatrist

Feet marks in shoes at the scene are admissible: *R v Rose* (1993) 69 A Crim R 1 (SA CCA).

[9.230] Aboriginal tracker

A trained, experienced Aboriginal tracker can give evidence of, for example, footprints he or she observed. But a comparison with inked footprints may be beyond his or her expertise and thus be inadmissible: *R v Harris* (1997) 7 NTLR 1; 94 A Crim R 454 (ruling of Bailey J).

[9.235] Shoe prints

Prints made by shoes can be the subject of identification evidence. The expert who is called must be sufficiently expert and be able to match the shoe with the print.

In *R v Fisher* (1986) 23 A Crim R 392 (Qld CCA) it was held (at 399–400) that the evidence was properly admitted.

In *Lewis v The Queen* (1987) 88 FLR 104; 29 A Crim R 267 (NT CCA) it was held that the evidence was insufficient and no tender should have been made of the shoe and the print (at 109; 279 and 119; 390).

The expert must not give evidence that his opinion is reinforced by the admission of an accused that the footprint is his: *R v Howard* [1989] 1 SCR 1337; 48 CCC (3d) 38 (SCC).

[9.240] Jury to make their own assessment

In *Neville v The Queen* (2004) 145 A Crim R 108 (WA CCA) police had given identification evidence of the voice of the accused recorded by a surveillance camera. The judge had directed the jury not to play detective. On appeal held that the police evidence was properly admitted but that the detective direction was wrong. Murder conviction set aside. Miller J with whom the others agreed said (at 126 [71]):

[T]he cases stand for the proposition that a jury must be informed that although there is evidence to assist them on the issue, it remains ultimately their decision and a decision which they can take, having regard to their own views on the matter from the material available in the Court, irrespective of the opinion or identification evidence which may have been adduced by the prosecution.

[9.245] Evidence Acts

The admissibility of identification evidence in UEA jurisdictions is governed by ss 114–116 of the *Uniform Evidence Acts*. “Identification evidence” in the Act is defined in the Dictionary as follows:

- (a) an assertion by a person to the effect that a defendant was, or resembles (visually, aurally or otherwise) a person who was, present at or near a place where:
 - (i) the offence for which the defendant is being prosecuted was committed; or

- (ii) an act connected to that offence was done –
at or about the time at which the offence was committed or the act was done, being
an assertion that is based wholly or partly on what the person making the assertion
saw, heard or otherwise perceived at that place and time; or
- (b) a report (whether oral or in writing) of such an assertion;

The rules relating to identification evidence are confined to representations that contend that the defendant is a particular person. The rules relating to identification evidence extend to recognition evidence (where the witness knows the accused) and semblance evidence (where the witness states that the accused looked like someone).

Identification evidence does not include DNA evidence, fingerprint, other forensic identification procedures and other physical items. Importantly, the definition of identification evidence does not extend to visual identification evidence that is exculpatory of the accused. Identification evidence also does not include evidence of an individual's characteristics, such as “the rapist had blue eyes” or “the rapist was a friend of my boss”: *Trudgett v The Queen* (2008) 70 NSWLR 696; 182 A Crim R 253; [2008] NSWCCA 62.

The Act maintains a strong preference for identification parades as being the preferred mode of identification evidence and photographic identification is only admitted in limited circumstances: ss 114, 115.

There are two main situations where photographic identification is admissible (i) where it was not reasonable to have conducted an identification parade; and (ii) where the defendant refused to take part in such an identification parade.

There are a number of situations in which it might not be reasonable to conduct an identification parade, including where it is not possible to gather other people who looked similar to the accused or where a suspect was not identified and the suspect was identified using other means which undermine the usefulness of an identification parade.

Section 115 of the *Act* maintains the common law distinction between using photographs during the course of the detection process (which is permitted) and the use of photographs during the evidentiary stage (which is generally not permitted). This distinction is preserved by stipulating that photographs cannot be used after a person has been in police custody. Photographs are permitted during the investigative stage of an inquiry in order to assist in the process of identifying and apprehending suspects.

When picture identification occurs it cannot involve pictures that show that the accused was in police custody.

Section 116 of the *Act* states that a warning is necessary where identification evidence is admitted. It is important to note that s 116 is supplemented by s 165.

Thus, as is the case at common law, whenever identification evidence constitutes a significant part of the prosecution case and the reliability of such evidence is in dispute, the judge must give both general and specific warnings regarding the dangers of convicting on the basis of such evidence. A specific warning must refer to all matters which may reasonably be regarded as undermining the reliability of the identification evidence. The general warning must sufficiently convey to the jury that identification evidence can be very unreliable, the reasons for such unreliability, and that one or more witnesses can be very convincing notwithstanding the fact that they have mistakenly given identification evidence: see [Dhanhoa v The Queen \(2003\) 217 CLR 1; 139 A Crim R 41; \[2003\] HCA 40](#).

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